

PLJ 2021 Lahore 318

Present: MASUD ABID NAQVI, J.

SHOUKAT ALI etc.--Petitioners

Versus

MUHAMMAD ANWAR etc.--Respondents

W.P. No. 9438 of 2016, decided on 16.11.2020.

Civil Procedure Code, 1908 (V of 1908)--

---S. 12(2)--Specific Relief Act, (I of 1877), Ss. 9, 42 & 54--Constitution of Pakistan, 1973, Art. 199--Suit for declaration possession and permanent injunction--Joint statement--Compromise--Request for withdrawal of suit--Dismissed as withdrawn--Application for setting aside--Consenting order--Allegation of fraud on part of respondents--Authority of judicial record--Challenge to--Neither deceased challenged order in his lifetime nor plaintiff has challenged said order--Petitioners failed to substantiate alleviation of fraud on part of respondents/defendants--Mere allegation not supported by any material would not invariably warrant inquiry or investigation--Authenticity of judicial record cannot be doubted without any solid proof and only on oral arguments--Petitioners has not been able to point out any plausible ground due to which he is seeking setting aside of impugned orders, hence, they are not entitled to any relief--No infirmity, legal or factual, has been pointed out in impugned orders, requiring interference--Petition dismissed.

[Pp. 319 & 320] A, B, C & D

2004 SCMR 843 *ref.*

Mr. Athar Ali Bhinder, Advocate for Petitioners.

Ch. Muhammad Rafique Gujjar, Advocate for Respondents No. 1, 2, 3 and 5.

Date of hearing: 16.11.2020.

ORDER

Brief facts of this writ petition are that plaintiffs/predecessor in interest of present petitioners filed suit for declaration, possession and permanent injunction wherein respondents/ defendants entered appearance and in presence of respondents/defendants, all the three plaintiffs got recorded their joint statement on 16.06.2009 to the effect that compromise has been effected between the parties and they requested for withdrawal of the suit, whereupon the suit was dismissed as withdrawn *vide* order dated 16.06.2009. Thereafter on 23.04.2010 the petitioners No. 2 to 9/legal heirs of plaintiffs No. 1 and Petitioner No. 1 Defendant No. 2 filed an application under Section 12(2), CPC for setting aside consenting order dated 16.06.2009 and the Same was dismissed *vide* order dated 13.02.2014, Feeling aggrieved, civil revision challenging the said order was filed and the same was also dismissed *vide* order dated 25.01.2016. Being dissatisfied, instant writ petition has been filed by challenging the said orders.

2. I have heard the arguments advanced by the learned counsel for the petitioners/legal heirs of Plaintiffs No. 1 & 2 and perused the record.

3. Perusal of record reveals that only legal heirs of Taj Din/Plaintiff No. 1 and Shaukat Ali/Plaintiff No. 2 have challenged the order dated 16.06.2009 by filing an application under sections 12(2), CPC dated 27.04.2010 while neither Taj Din deceased challenged the order dated 16.06.2009 in his lifetime nor Muhammad Younas/Plaintiff No. 3 has challenged the said order. All the plaintiffs namely Taj Din/ Plaintiff No. 1, Shaukat Ali/Plaintiff No. 2 and Muhammad Younas/ Plaintiff No. 3 appeared before the trial Court on 16.09.2009 and unconditionally withdrew the suit by recording their joint statement and putting their thumb impressions on the order sheet due to compromise while affidavit of Taj Din/Plaintiff No. 1 was also placed on record as Mark-1. This fact is very much clear from order sheet of trial Court which bears signature and thumb impressions of the plaintiffs. No details of compromise are mentioned for withdrawal of that suit either in the recorded joint statement or in the affidavit filed by Plaintiff No. 1/Taj Din. The petitioners failed to substantiate the allegation of fraud on the part of the respondents/defendants. Mere allegation not supported by any material would not invariably warrant inquiry or investigation. All these abovementioned facts negate the claim/ground as written in

application for setting aside the impugned orders. Therefore, plea being raised by the petitioners at this stage has no force. Learned counsel for the petitioners failed to satisfy the judicial conscious of the Court as presumption of truth is attached to the record of the Court under Article 129 (e) of the Qanun-e-Shahadat Order, 1984 and Article 150 of the Constitution of Islamic Republic of Pakistan, 1973. Authenticity of the judicial record cannot be doubted without any solid proof and only on the oral arguments of the learned counsel. Learned counsel for petitioners has not been able to point out any plausible ground due to which he is seeking setting aside of the impugned orders, hence, they are not entitled to any relief. The case law relied on by learned counsel for the petitioners reported as *Muhammad Aslam and others vs Mst. Kundan Mai and others* (2004 SCMR 843) is concerned, the same is distinguishable from the facts of the present case.

4. In view of the foregoing discussion, this Court is of the considered view that the impugned orders have been passed after properly evaluating the facts of the case and keeping in view the settled law. No infirmity, legal or factual, has been pointed out in the impugned orders, requiring interference, therefore, this writ petition is dismissed.

(Y.A.) Petition dismissed